

VCU311593 V., J. vs. County of Tulare

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-07-13

Motion: County's (1) Demurrer and (2) Motion to Strike Sixth Amended Complaint

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Re: V., J. vs. County of Tulare

Case No.: VCU311593

Date: July 13, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: County's (1) Demurrer and (2) Motion to Strike Sixth Amended Complaint

Tentative Ruling:

(1) To overrule the demurrer to the first cause of action; to sustain the demurrer to the second cause of action without leave to amend;

(2) To grant the motion to strike without leave to amend as to Nos. 1, 2, 3, 4, 5a, 5, 6, 7, 8, 9, 10, 12, 13, 14, 17a, 17b, 18a, 18b, and 19;

To grant the motion to strike, in part, as to Nos. 11a, 11i, 11j, 11k and 20 without leave to amend;

To deny the motion to strike, in part, as to Nos. 11a, 11i, 11j, 11k and 20;

To deny the motion to strike as to Nos. 15, 16;

To deny the motion to strike as moot as to Nos. 21, 22;

To order the County to answer the sixth amended complaint no later than ten (10) days from the date of this hearing.

Facts

The sixth amended complaint alleges cause of action against the County of Tulare for direct liability under Government Code section 815.6 and vicarious liability pursuant to Government Code section 815.2, 815.4 and 820.

Defendant demurs to these causes of action for failure to allege sufficient facts and to the vicarious liability theory under immunity set forth in *K.C. v. County of Merced* (2025) 109 Cal.App.5th 606. Further, Defendant seeks to strike a number of references to as to allegations the Court has previously struck and to citations that do not create a mandatory duty.

The operative sixth amended complaint alleges the following:

"25. In approximately 1990, Defendants placed Plaintiff in the foster home of Randy and Lupe Weldon ("Foster Parents 1") located in Porterville, California ("Foster Home 1"). Foster Parents and Foster Home were approved, licensed, trained, supervised and/or compensated by County.

26. In approximately 1990, when Plaintiff was approximately three (3) years old, Plaintiff was sexually abused and/or assaulted by Plaintiff's teenage "Perpetrators", on multiple occasions over a period of approximately several months when Plaintiff resided in Foster Home. The acts of sexual abuse and assault took place in Foster Home 1.

...

30. In approximately 1990, Defendants placed Plaintiff in the foster home of Ladell and Sherri Black ("Foster Parents 2") located in Porterville, California ("Foster Home 2"). Foster Parents and Foster Home were approved, licensed, trained, supervised and/or compensated by County.

31. In approximately 1990 through 1991, also when Plaintiff was three (3) to four (4), Plaintiff was sexually abused and/or assaulted by his Foster Father, Ladell Black (Perpetrator "3") (6AC ¶¶25, 26, 30, 31.)

As to duties of care, the operative amended complaint alleges the following:

"13...Defendants, and each of them, were responsible for providing for the care, protection, and safety of Plaintiff, who was under their care and custody. (Child Welfare Services ("CWS") Manual, Letter No. SS-89-03, Division No. 30-100, 30-110, 30-132, 30-492, 30-494 (Eff. 8/1/89.) Defendants owed a duty to care for and protect Plaintiff, a child in foster care in County of Tulare, and in that regard, assumed an obligation of the highest order to ensure Plaintiff's safety. (Id.)

14. At all times relevant and material hereto, Defendants owed a non-delegable duty to use reasonable care in the supervision, and/or monitoring of foster care facilities, homes, and/or families with whom foster children were placed. (CWS Manual, Letter SS-89-03, Division No. 30-100, 30-110, 30-132, 30-492, 30-494 (Eff. 8/1/89.)

15. At all times relevant and material hereto, Defendants owed a non-delegable duty to Plaintiff to use reasonable care to protect the safety, care, well-being, and health of Plaintiff while under Defendants' care and custody. (CWS Manual, Letter SS-89-03, Division No. 30-100, 30-110, 30-132, 30-492, 30-494 (Eff. 8/1/89.)

16. At all times relevant and material hereto, Defendants' duties encompassed reasonable care in the supervision of children in their custody and control, as well as reasonable care in the selection, retention, and supervision of foster parents and employees supervising foster children in Defendants' custody or care. (CWS Manual, Letter No. SS-89-03, 30-100, 30-110, 30-132, 30-492 (Eff. 8/1/89.)

17. At all times relevant and material hereto, Defendants owed a non-delegable duty to exercise reasonable care in the training of employees, case workers, and/or agents in the prevention of sexual assault and abuse and protection of the safety of children in Defendants' care, custody and/or control. (CWS Manual, Letter No. SS-89-03, No. 30-196, 30-494 (Eff. 8/1/89); Welfare and Institutions Code § 16206 (added by Stats. 1987.)

18. At all times relevant and material hereto, Defendants owed a non-delegable duty to establish and implement policies and procedures in the exercise of reasonable care for the prevention of sexual assault and abuse and protection of the safety of children in their care, custody, and/or control. (CWS Manual, Letter No. SS-89-03, No. 30-192, 30-494 (Eff. 8/1/89); Welfare and Institutions Code §§ 16504 (added by Stats. 1982), 16206 (added by Stats. 1987.)

19. At all times relevant and material hereto, Defendants owed non-delegable duties to children in foster care, like Plaintiff, including, without limitation:

a. To respond appropriately to reports of child abuse and/or neglect to protect the child from maltreatment (CWS Manual, Letter No. SS-89-03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3);

b. To visit children in foster home/facility placements in accordance with the requirements for children in custody (CWS Manual, Letter No. SS-89-03, No. 30-162, 30-342 (Eff. 8/1/89), citing Welfare & Institutions Code §§ 10553, 16504.)

c. To investigate all relevant dangerous conditions of the foster home/facility that might adversely affect the child (CWS Manual, Letter No. SS-89-03, No. 30-162 (Eff. 8/1/89); Welfare & Institutions Code § 16504;

d. To respond to violations of the foster home/facility's operating license or requirements (CWS Manual, Letter No. SS-89-03, No. 30-338 (Eff. 8/1/89), citing Welfare & Institutions Code §§ 10553, 10554, Cal. CCR, Title 22, Section 87087(d).)

e. To ensure that foster children residing in a foster home/facility are supervised at all times by authorized adult caregivers (CWS Manual, Letter No. SS-89-03, No. 30-342 (Eff. 8/1/89),

f. To continually assess the safety of a child's particular placement (CWS Manual, Letter No. SS-89-03, No. 30-142, 30-144, 30-198, 30-340, 30-342, 30-346 (Eff. 8/1/89);

g. To provide each child in foster care with quality services to protect their safety and health (CWS Manual, Letter No. SS-89-03, No. 30-009, 30-342, 30-346 (Eff. 8/1/89);

h. To initiate and implement all necessary plans of care (CWS Manual, Letter No. SS-89-03, No. 30-142, 30-144, 30-198, 30-232, 30-476 (Eff. 8/1/89);

i. To report and/or respond to all known incidents of sexual assault, abuse or aggression occurring in the foster home/facility (CWS Manual, Letter No. SS-89-03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3);

j. To ensure that foster children are not left in dangerous conditions, including being subjected to sexual, emotional, or physical abuse (CWS Manual, Letter No. SS-89-03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3);

k. To ensure that children are provided a non-threatening environment for candid assessments of their living situation with care managers or other supervisory personnel, to assure that incidents of abuse, misconduct, or violations of rights may be reported without fear of repercussion or not being believed (CWS Manual, Letter No. SS-89-03, No. 30-198, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3); and

l. To provide a safe and stable home for foster children, including Plaintiff (CWS Manual, Letter No. SS-89-03, No. 30-342 (Eff. 8/1/89)) (6AC ¶13-19.)

Further, that:

“21. At all times relevant and material hereto, Defendants were in a special relationship with the individuals and/or agents to whom they delegated or assigned custody and/or control of Plaintiff, such that Defendants owed a duty to supervise and control such individuals to prevent foreseeable harm. (CWS Manual, Letter No. SS-89-03, No. 30-196, 30-494 (Eff. 8/1/89); Welfare and Institutions Code § 16206 (added by Stats. 1987).)

22. At all times relevant and material hereto, County also owed Plaintiff certain mandatory duties as set forth in, inter alia, WIC §§ 328, 16501(f), 16504, 16206 (added by Stats. 1987), and 16504; Health & Safety Code §§1522, et seq., specifically, §§ 1522, 1522.1, 15224, 1524.5, 1525, 1525.3, 1526.5, 1526.75; Penal Code §§ 11165.7, 11166, 11166.3; CWS Manual, Letter No. SS-89 03, No. 30-134, 30-196, 30-198 30-494 (Eff. 8/1/89).

23. Defendants, thus, owed Plaintiff a duty to exercise reasonable care to protect him from foreseeable harms, including childhood sexual assault and/or abuse, when he was a child in foster care. (Welfare and Institutions Code § 16504; CWS Manual, Letter No. SS-89-03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3).”

Authority and Analysis

(1) Demurrer

The purpose of a demurrer is to test whether a complaint “states facts sufficient to constitute a cause of action upon which relief may be based.” (Young v. Gannon (2002) 97 Cal.App.4th 209, 220. To state a cause of action, a plaintiff must allege facts to support his or her claims, and it is improper and insufficient for a plaintiff to simply plead general conclusions. (Careau v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 11371, 1390.) The complaint must contain facts sufficient to establish every element of that cause of action, and thus a court should sustain the demurrer if “the defendants negate any essential element of a particular cause of action.” (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-80)

To determine whether the complaint states facts sufficient to constitute a cause of action, the trial court may consider all material facts pleaded in the complaint and those that arise by reasonable implication therefrom; it may not consider contentions, deductions, or conclusion of fact or law (Moore v. Conliffe (1994) 7 Cal.4th 634, 638.)

It is well-settled that all well-pled material facts in the complaint are assumed to be true for the purpose of the demurer. (C & H Foods v. Hartford Ins. Co. (1984) 163 Cal.App.3d 1055, 1062.)

Public Entity Liability

The starting point is that, except as otherwise provided by statute, “[a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code § 815(a).) “[T]his section ‘abolished all common law or judicially declared forms of liability for public entities, except for such liability as

may be required by the federal or state Constitution. Thus, in the absence of some constitutional requirement, public entities may be liable only if a statute declares them to be liable' [Citation.]" (Becerra v. County of Santa Cruz (1998) 68 Cal.App.4th 1450, 1457.) It has been recognized that it is impermissible to sue a public entity for common law negligence. (Torres v. Department of Corrections and Rehabilitation (2013) 217 Cal.App.4th 844, 850.)

Government tort claims must be pled with particularity. (Susman v. City of Los Angeles (1969) 269 Cal.App.2d 803, 809.) They must also be grounded in statute. (Gov. Code § 815; E.L. White, Inc. v. City of Huntington Beach (1978) 21 Cal.3d 497, 512, fn. 9.)

Koussaya v. City of Stockton (2020) 54 Cal.App.5th 909, 943 summarizes the theories of recovery against a public entity as follows:

"When a party is injured by a tortfeasor and seeks to affix liability on the tortfeasor's employer, the injured party ordinarily must demonstrate either (1) the employer violated a duty of care it owed to the injured party and this negligence was a proximate cause of the resulting injury (the direct liability theory), or (2) the tortfeasor-employee was liable for committing the tortious conduct that caused the injury while acting within the course and scope of his or her employment (the vicarious liability theory). [Citation.] When the employer is a governmental agency, the statutory framework permits the injured party to pursue the vicarious liability theory in accordance with these general common law principles. [Citation.] However, the statutory framework requires, as a condition to the injured party's recovery on a direct liability theory against a governmental agency, that the injured party identify a 'specific statute declaring [the entity] to be liable, or at least creating some specific duty of care' by the agency in favor of the injured party. [Citations.]" (de Villers v. County of San Diego (2007) 156 Cal.App.4th 238, 247–248, fn. omitted)" (emphasis added.)

Further, the Court notes again Scott v. County of Los Angeles (1994) 27 Cal.App.4th 125, which expressly holds:

"We therefore hold that public entities are liable under Govt. Code §815.6 for injuries to children in foster care which occur as a result of any violation of those duties; such public entities and their employees are not immune under Government Code sections 815.2 and 820.2 for violations of those duties." (Id. at 141.)

First Cause of Action – Negligence – Direct Liability – Government Code Section 815.6

As noted above, the operative amended complaint lists a host of alleged mandatory duties, including under Welfare and Institutions Code section 16501(f) and Penal Code section 11166.

Welfare and Institutions Code section 16501(f)

Subdivision (f) states, in pertinent part, as follows:

"...County welfare departments shall respond to any report of imminent danger to a child immediately and all other reports within 10 calendar days. An in-person response is not required when the county welfare department, based upon an evaluation of risk, determines that an in-person response is not appropriate. This evaluation includes collateral contacts, a review of previous referrals, and other relevant information, as indicated." (Welf. & Inst. Code, § 16501(f).)

The Court finds the discussion of such a situation from Jacqueline T. v. Alameda County Child Protective Services (2007) 155 Cal.App.4th 456, 477 helpful on this issue:

"With respect to the duty under this section [16501(f)] to respond immediately to reports of imminent danger to a child, it is clear such duty arises only if a prior determination has been made that imminent danger exists—a discretionary

determination expressly entrusted to County and Employees. [citation omitted.] As such, County's or Employees' determination that no imminent danger existed is protected by the broad grant of immunity sections 820.2 and 821.6 afford county welfare departments and their officials in investigating alleged acts of child abuse and thereafter deciding whether to instigate dependency proceedings...

With respect to the duty under Welfare and Institutions Code section 16501, subdivision (f) to 'respond' within 10 days to 'all other reports' of abuse, we conclude the undisputed evidence reveals no breach. Nowhere does the statute define 'respond' or mandate a particular response. And here, County officials undisputedly responded to each report of alleged abuse of Roes 1 and 2 by promptly generating screener narratives and then referring the matters to social workers for investigation, well within 10 days of receiving the reports. To the extent Jacqueline T. contends these responses were inadequate, County's and Employees' decisions in this regard were again discretionary, and thus immunized under sections 820.2 and 821.6 for the reasons discussed."

Jacqueline T does appear to present a mandatory duty to respond within 10 days of all other reports of abuse ("[w]ith respect to the duty under Welfare and Institutions Code section 16501, subdivision (f) to 'respond' within 10 days to 'all other reports' of abuse.")

In Jacqueline T, that duty was met and there was no breach because it was county officials "undisputedly responded to each report of alleged abuse of Roes 1 and 2 by promptly generating screener narratives and then referring the matters to social workers for investigation, well within 10 days of receiving the reports." (Id. at 477.) The court rejected the theory that the county could be liable for inadequately generating narratives or inadequately referring the matter to social workers for investigation. (Id.)

Here, however, Plaintiff alleges not that the response was inadequate as to the reports generated or referrals given, but that, instead, no action whatsoever was taken (that is no screener or report was generated at all and no referral was ever provided.) (6AC ¶¶35.) (See B.H. v. County of San Bernardino (2015) 62 Cal.4th 168, 194 ["Once notified of the suspected child abuse incident, the child welfare agency was required to evaluate the report within 10 calendar days. (Welf. & Inst. Code, § 16501, subd. (f).)"]

Therefore, the Court finds mandatory duty under Welfare and Institutions Code section 16501(f) as to mandating some type of response as in Jacqueline T, and therefore pleading "no action" was taken is sufficient.

Therefore, the Court overrules the demurrer.

Demurrers do not lie as to only parts of causes of action, where some valid claim is alleged. (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119 ["A demurrer must dispose of an entire cause of action to be sustained."].)

Here, the Court has found sufficient duty under Penal Code section 16051(f) above and therefore, on demurrer, need not address other theories of mandatory duty.

Second Cause of Action – Negligence – Vicarious Liability - Government Code Section 815.6

In K.C., the operative complaint alleged the following:

"According to the complaint, K.C. "was sexually abused and assaulted in foster care while under the legal custody, care, and control of" County and consequently suffered "physical, psychological, and emotional injuries." The following facts were alleged:

"23. In approximately 1971, [County] placed Plaintiff in the foster home of ... 'Foster Parents 1' ... , located in Merced, California ('Foster Home 1'). Foster Parents 1 and Foster Home [1] were approved, licensed, trained, supervised, and/or compensated by [County].

"24. From approximately 1971 to 1976 when Plaintiff was approximately four (4) to [nine] (9) years old, Plaintiff was sexually abused and assaulted by Foster Parent's nephew ... ('Perpetrator 1'), approximately daily for approximately five (5) years while Plaintiff resided in the foster home. The acts of sexual abuse and/or assault took place at Foster Home 1.

"28. In approximately 1976, [County] placed Plaintiff in the foster home of foster mother and foster father ('Foster Parents 2'), located in Merced, California ('Foster Home 2'). Foster Parents 2 and Foster Home 2 were approved, licensed, trained, supervised, and/or compensated by [County].

"29. From approximately 1976 to 1977 when Plaintiff was approximately nine (9) to ten (10) years old, Plaintiff was sexually abused and assaulted by Plaintiff's foster brother ... ('Perpetrator 2'), approximately [sic] multiple times for approximately one (1) year while Plaintiff resided in the foster home. The acts of sexual abuse and/or assault took place at Foster Home 2.

"30. The acts of sexual abuse and/or assault perpetrated against Plaintiff by Perpetrator 2 were for Perpetrator 2's sexual gratification and included Perpetrator 2 fondling Plaintiff's vagina under her clothing, and Perpetrator 2 forcing Plaintiff to perform oral copulation on Perpetrator 2's penis, and Perpetrator 2 performing oral copulation on Plaintiff's vagina.

"32. [County] w[as] put on notice of the sexual abuse and/or assault Plaintiff suffered while residing in Foster Home 1 several times. Plaintiff repeatedly reported that she was being sexually abused and/or assaulted to her social worker, Ms. P[.], an employee and/or agent of County.

"33. Despite disclosures to [County] and/or [County's] actual and/or constructive knowledge of the sexual assault and abuse at issue, no corrective action was taken to Plaintiff and Plaintiff remained in Foster Home 1 where she continued to be sexually assaulted and abused after Plaintiff disclosed the same to [County]." (K.C., supra, 109 Cal. App. 5th at 610-612.)

The court, thereafter, noted, as to government tort liability, that "'Except as otherwise provided by statute ... , a public employee is liable for injury caused by his act or omission to the same extent as a private person.'" (Gov. Code, § 820, subd. (a).) "A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative." (Id., § 815.2, subd. (a).)" (Id. at 615.)

The court then examined raising immunity on demurrer, noting that "...the court may elect to proceed directly to the immunity issue on the grounds of expediency and judicial economy." (Id.) The court further noted that "if the employee is immune, so too is the [public entity]. [citation omitted]" (Id.)

The court noted that "The operative complaint alleged: (1) K.C. was sexually assaulted at two separate foster care placements in the 1970's; (2) K.C. gave notice to County—via social workers—of this abuse; and (3) no investigative or corrective action was taken." (Id. at 616.)

As to the analysis and application of immunity, the K.C. court set forth the following before finding that discretionary immunity applied to the facts alleged in the operative complaint:

Whether or not a public employee is immune from liability under [Government Code] section 820.2 depends ... upon whether the act [or omission] in question was 'discretionary'." [citation omitted] However, discretionary immunity "is limited to policy and planning decisions, and does not reach 'lower level decisions that merely implement a basic policy already formulated.' [Citation.]" [citation omitted] "Immunity for 'discretionary' activities serves no purpose except to assure that courts refuse to

pass judgment on policy decisions in the province of coordinate branches of government. [citation omitted]" (Id. at 617.)

As applied, the court concluded that the decisions by the social worker related to the investigation of child abuse and discontinuation of foster home placement based on a suspicion of abuse and therefore involved the exercise of analysis and judgment as well as sensitive policy decisions that require judicial abstention, including as to "preliminary determinations" that "reports of possible abuse" "did not warrant initiation" of further action. (Id. at 617-618.) The court noted further strong policy considerations exist as to permitting public employees to perform assigned tasks without fear of civil actions, permitting social workers to make quick decisions based on sometimes incomplete information and therefore providing social workers with absolute immunity from suits alleging improper investigation of abuse and removal based on suspicion of abuse. (Id. at 618.)

The court continued, noting that decisions as to undertake investigative or corrective action in response to reported abuse are no less discretionary than the original placement decision and therefore social workers and their public entity employers are immune. (Id. at 619.)

The K.C. court noted that in instances where the allegations involve social workers who were confronted with reports of abuse that should have prompted investigative or corrective action, but where they failed to properly exercise their discretion to do so, such "'claims of improper evaluation cannot divest a discretionary policy decision of its immunity.'" [citation omitted]" (Id. at 619-620.)

The K.C. court noted that this determination as to immunity was proper on demurrer:

"While a finding of immunity is precluded "solely on grounds that 'the [affected] employee's general course of duties is "discretionary"" [citation omitted] and "requires a showing that 'the specific conduct giving rise to the suit' involved an actual exercise of discretion, i.e., a '[conscious] balancing [of] risks and advantages'" [citation omitted] "a strictly careful, thorough, formal, or correct evaluation" is not mandatory (ibid., italics omitted). "Such a standard would swallow an immunity designed to protect against claims of carelessness, malice, bad judgment, or abuse of discretion in the formulation of policy." (Id. at 619.) (emphasis added.)

As applied here, the Court finds the allegations sound in decisions by a social worker related to the investigation of child abuse and discontinuation of foster home placement based on a suspicion of abuse. Such decisions therefore involved the exercise of analysis and judgment, as in K.C. and require judicial abstention for the same reasons stated therein. (Id. at 617-618.) Therefore, the Court finds discretionary immunity applies to the facts alleged in this matter.

Plaintiff argues that *Caldwell v. Montoya* (1995) 10 Cal.4th 972 requires an examination of "deliberate and considered policy decisions, in which a '[conscious] balancing [of] risks and advantages ... took place.'" (Id. at 984.) However, the court in K.C. acknowledged and applied *Caldwell*, which the Court does in turn here. (K.C., supra, 109 Cal. App. 5th at 619-620.)

Likewise, K.C. addressed the other recent case on this issue, *D.G. v. Orange County Social Services Agency* (2025) 108 Cal.App.5th 465, noting:

"This case addressed—inter alia—whether discretionary immunity was a proper basis for granting summary judgment and is therefore inapposite. (See *Leo F. Piazza Paving Co. v. Foundation Constructors, Inc.* (1981) 128 Cal.App.3d 583, 591, fn. 4 ["The purpose of a demurrer is to test the legal sufficiency of a pleading, not to test the evidence or other extrinsic matters. [Citation.] Summary judgment, on the other hand, provides a method by which, if the pleadings are not defective, the court may determine whether the triable issues apparently raised by them are real or merely the product of an adept pleading."].)" (K.C., supra, 109 Cal. App. 5th at 620, FN9.)

The Court, likewise, finds *D.G.* inapposite here for the same reasons.

Therefore, the Court sustains the demurrer to the second cause of action without leave to amend.

(2) Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436; *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

Here, Defendant seeks to strike a number of portions of the operative sixth amended complaint.

No. 1 – Paragraph 13

Here, Defendant seeks to strike the entire last sentence of the paragraph, stating ““Defendants owed a duty to care for and protect Plaintiff..., and in that regard assumed an obligation of the highest order” on the basis that the Court's ruling on Defendant's motion to strike portions of the third amended complaint on October 6, 2025 already struck this allegation without leave to amend.

The Court, on this basis, will grant the motion to strike as to No. 1 without leave to amend.

No. 2 – Paragraphs 22, 51 and 60 – References to Health and Safety Code section “15224”

Here, Defendant argues that Health and Safety Code section “15224” does not exist and section 1522.4 was not enacted until after the events giving rise to this complaint. Further, that section 1522.4 does not pertain to the County. While the Court notes 1522.4 appears to have been first enacted in 1984, the Court agrees that this section does not appear to pertain to the County, as it appears to relate to “ any community care facility providing 24-hour care for children”

The Court, on this basis, will grant the motion to strike as to No. 2 without leave to amend.

No. 3 – Paragraphs 13-20, 22, 23, 51, 60, 67-68, 71 - Citations to CWS Manual Letter SS-89-03

Here, Defendant argues that CWS Manual Letter SS-89-03 fails to create a mandatory duty, except as to the requirement that the department to replace certain pages of the regulations in the Department's Manual of Policies and Procedures. Additionally that nothing contained in the letter applies to allegations of disclosure that abuse was made to a social worker who then fails to take any action whatsoever.

The Court agrees and grants the motion as to No. 3 without leave to amend.

No. 4 – Paragraphs 22, 51, 60 – References to Welf. & Inst. Code §§ 328, 16504, to Penal Code section 11166.3 and/or 11165.7, Health & Safety Code §§ 1522, et. seq, specifically §§ 1522, 1522.1, 1522.4, 1524.5, 1525, 1525.3, 1526.5, 1526.75, Divisions 30-100, 30-110, 30-132, 30-134, 30-196, 30 198, 30-492, 20-494.

Welfare and Institutions Code sections 328 and 16504

Welfare and Institutions Code section 328 concerns investigatory duties of social workers with regard to determining whether child welfare services should be offered and whether juvenile court proceedings should be commenced. Section 328 states: "If the social worker has cause to believe that there was or is within the county, or residing in the county, a person described in Section 300 [describing children subject to jurisdiction of the juvenile court], the social worker shall immediately make any investigation the social worker deems necessary to determine whether child welfare services should be offered to the family and whether proceedings in the juvenile court should be commenced."

In the Court's view, this invokes some measure of discretion (with respect to "has cause to believe" and "any investigation the social worker deems necessary") and therefore does not create a mandatory duty. The Court, therefore, grants the motion to strike as to Welfare and Institutions Code section 328 without leave to amend.

"Welfare and Institutions Code section 16504 requires county welfare departments receiving reports of child abuse to carry out an immediate 'in-person response' in 'emergency situations.'" (Newton v. County of Napa (1990) 217 Cal.App.3d 1551, 1560.) This appears, however, to apply to situations where abuse is reported by someone not already within the foster care system. For instance, section 16504(a) states "Any child reported to the county child welfare services department to be endangered by abuse, neglect, or exploitation shall be eligible for initial intake and evaluation of risk services." (emphasis added)

Moreover, Newton held that that the county welfare departments receiving reports of child abuse were absolutely immune for their decision to conduct an in-person response to an emergency situation and that the decision whether such "emergency situation" existed was one entrusted to their discretion and was also absolutely immune. (Id. at 1560.)

The Court, therefore, grants the motion to strike as to Welfare and Institutions Code section 16504 without leave to amend.

Penal Code section 11166.3 and/or 11165.7

Here, Defendant notes Penal Code section 11163.3 discusses training as to mandated reporting laws, but that there is no allegation here that such training was not provided. Further, the Court notes Penal Code section 11165.7 appears to define or designate certain mandated reporters.

Neither of these sections, in the Court's opinion, imposes a mandatory duty connected to the allegations of the amended complaint.

Therefore, the Court grants the motion as to Penal Code sections 11166.3 and 11165.7 without leave to amend.

Health & Safety Code §§ 1522, et. seq, specifically §§ 1522, 1522.1, 1522.4, 1524.5, 1525, 1525.3, 1526.5, 1526.75,

Although plaintiff alleges the County failed to discharge mandatory duties prescribed in section 1522 "et seq.," the Court notes article 2 is comprised of sections 1520 through 1526.8, which, as indicated, are comprised of administration provisions relating to licensing of community care facilities and community care facilities providing 24-hour care for children" which, amongst other things, may provide foster family agency services for children (H & S Code, § 1502, subd. (a).) Therefore, the Court grants the motion to strike these references without leave to amend.

Divisions 30-100, 30-110, 30-132, 30-134, 30-196, 30 198, 30-492, 20-494.

Here, Defendant argues these Division 30 regulations do not apply and do not create a relevant mandatory duty where the allegations are that a disclosure of abuse was made to a social worker who then fails to take any action whatsoever. The Court agrees with this position and grants the motion to strike these references without leave to amend.

No. 5a – Paragraph 13 and Paragraph 20 – Divisions 30-100, 30-132, 30-492 and the statement “At all times relevant and material hereto, Defendants and each of them were responsible for providing for the care, protection and safety of Plaintiff, who was under care and custody.”

Because a mandatory duty must be grounded in a specific statute, and the Court has granted the motion to strike those sections of the manual above, the Court grants the motion as to No. 5a without leave to amend.

No. 5 - Paragraph 13 – Welfare and Institutions Code section 328

The Court has granted the motion to strike above as to section 328 under No. 4 again and, for the same reasons, grants the motion to strike here as to No. 5 without leave to amend.

No. 6 – Paragraph 14 – ““At all relevant and material hereto, Defendants owed a non-delegable duty to use reasonable care in the supervision, and/or monitoring of foster care facilities, homes and/or families with whom foster children were placed.”

Because a mandatory duty must be grounded in a specific statute, the Court grants the motion as to No. 6 without leave to amend.

No. 7 – Paragraph 15 - “At all times relevant and material hereto, Defendants owed a non-delegable duty to Plaintiff to use reasonable care to protect the safety, care, well-being, and health of Plaintiff...” as well as the references to CWS Manual Letter No. 77-1, Division No. 30-301, 30-303, and 30-307

The Letter referenced does not appear to apply where the allegations are that a disclosure of abuse was made to a social worker who then fails to take any action whatsoever. Further, because a mandatory duty must be grounded in a specific statute and the Court has struck the references to these Division sections above, the Court grants the motion as to No. 7 without leave to amend.

No. 8 – Paragraph 16 – “At all times relevant and material hereto, Defendants’ duties encompassed reasonable care in the supervision of children in their custody and control, as well as reasonable care in the selection, retention, and supervision of foster parents, and employees...” and the references to CWS Manual Letter No. SS-89-03, and Division No. 30-regulations cited.

The Letter referenced does not appear to apply where the allegations are that a disclosure of abuse was made to a social worker who then fails to take any action whatsoever. Further, because a mandatory duty must be grounded in a specific statute and the Court has struck the references to these Division sections above, the Court grants the motion as to No. 8 without leave to amend.

No. 9 – Paragraph 17 – “Defendants owed a non-delegable duty to exercise reasonable care in the training of employees, case workers, and/or agents in the prevention of sexual assault and abuse and protection of the safety of children in Defendants’ care, custody and/or control” - CWS Manual, Letter No. SS-89-03, No. 30-196, 30-494 (Eff. 8/1/89); Welfare and Institutions Code § 16206

The Letters referenced do not appear to apply where the allegations are that a disclosure of abuse was made to a social worker who then fails to take any action whatsoever. Additionally, section 16206 appears to reference a training program that does not create a mandatory duty based on the alleged facts. Further, because a mandatory duty must be grounded in a specific statute and the Court has struck the references to these Division sections above, the Court grants the motion as to No. 9 without leave to amend.

No. 10 – Paragraph 18 – “Defendants owed a non-delegable duty to establish and implement policies and procedures in the exercise of reasonable care for the prevention of sexual assault and abuse and protection of the safety of children in their care, custody, and/or control” - (CWS Manual, Letter No. SS-89-03, No. 30-192, 30-494 (Eff. 8/1/89); Welfare and Institutions Code §§ 16504 (added by Stats. 1982), 16206 (added by Stats. 1987.)

The Court has struck the references to sections 16504 and 16506 above under Nos. 4 and 9. As to the remaining references, the Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court grants the motion as to No. 10 without leave to amend.

No. 11 - Paragraph 19 (a) – (l)

a. To respond appropriately to reports of child abuse and/or neglect to protect the child from maltreatment (CWS Manual, Letter No. SS-89-03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3)

As to Penal Code section 11166, the California Supreme Court has held that section 11166(a) imposes a mandatory duty to make the report but does not require an investigation. (B.H. v. County of San Bernardino (2015) 62 Cal. 4th 168, 188.) Such a report must be made “...to a law enforcement agency or a county welfare department ‘whenever the mandated reporter, in [the mandated reporter’s] professional capacity or within the scope of [the mandated reporter’s] employment, has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect.’” (B.H. v. County of San Bernardino (2015) 62 Cal.4th 168, 186; see Pen. Code, §§ 11166, subd. (a), 11165.7, subd. (a)(1)–(4).)” (Roe v. Hesperia Unified School Dist. (2022) 85 Cal.App.5th 13, 31-32.)

Holman v. County of Butte (2025) 111 Cal. App. 5th 177 appears to extend, the mandatory cross-reporting duty imposed on law enforcement noted in B.H., supra, 62 Cal.4th at 181 under section 11166 to county welfare agencies.

In Holman, the plaintiff sued the defendant county under Government Code section 815.6, claiming that it breached mandatory duties under, relevant here, Penal Code section 11166 related to the evaluation, investigation, and cross-reporting of a referral alleging child abuse perpetrated against Plaintiff to to law enforcement and the district attorney’s office. (Holman, supra, 111 Cal. App. 5th at 184.) The plaintiff alleged that the defendant’s Health and Human Services Agency (the county’s welfare department) received a report of suspected child abuse, which the defendant then “evaluated out” without investigation. (Id.)

The trial court granted the defendant’s summary judgment motion and, as to the cause of action under section 11166, the court ruled the statute “...demonstrates the Legislature did not intend to require county welfare departments to cross-report every referral “‘reported to it’” and that the statute “clearly exempts [referrals]” that are “unfounded or ‘evaluated out.’” (Id. at 188.)

The appellate court, in reversing the trial court, noted that B.H., supra, 62 Cal.4th holds that when social workers receive a mandated report of suspected child abuse, section 11166, subdivision (j), imposes a mandatory duty to cross-report the alleged abuse to law enforcement and other agencies. (Id. at 193.)

The Holman court found that B.H. found the duty to cross-report is triggered by receipt of a mandated child abuse report, since such reports are made only when the mandated reporter “knows or reasonably suspects” a child has been the victim of child abuse or neglect and that determining whether a particular report involved child abuse or neglect does not involve an exercise of discretion, despite the possibility of exercising judgment. (Holman, supra, 111 Cal. App. 5th at 196 citing B.H., supra, 62 Cal.4th at 181, 185.)

As to extending this cross-reporting duty to county agencies, the Holman court noted “the purpose of CANRA is to protect children from abuse and neglect by mandating reciprocal cross-reporting duties” and “the Legislature intended that the

various law enforcement and child welfare agencies immediately communicate to each other information received on alleged child abuse or neglect so that they may in turn coordinate their investigative procedures.” (Id. citing B.H., supra, 62 Cal.4th at 183, 185.) Further, that “even though section 11166, subdivision (k), includes the term “reported to it,” and section 11166, subdivision (j), does not, we conclude the intent of the provisions is the same: To require “[t]he agency that receives the initial report [to] share the information with [the] various other agencies.” (Id.)

Finally, the court noted “California Supreme Court unequivocally held that determining whether a reported incident meets the definitions of abuse or neglect is a ministerial or operational function, not a discretionary activity. ([B.H.], supra, 62 Cal.4th at p. 181.) Accordingly, even if social workers are required to cross-report only those allegations determined to meet the definitions of abuse or neglect, there is still a triable issue of fact in this case as to whether the County violated a mandatory duty by failing to cross-report the referral. (Id. at pp. 180–186 [failure to cross-report can be the basis for imposing civil liability].)” (Id.)

Plaintiff here, therefore, has alleged a mandatory duty to cross-report under Penal Code section 11166 that the Defendants are alleged to have breached and which proximately caused Plaintiff’s injuries. This appears sufficient under Holman.

Therefore, the Court will not strike Paragraph 19(a) as to Penal Code section 11166.

However, the Court strikes the remaining references to the Penal Code and Letters in Paragraph 19(a) without leave to amend, as the Court has struck these above.

b. To visit children in foster home/facility placements in accordance with the requirements for children in custody (CWS Manual, Letter No. SS-89-03, No. 30 162, 30-342 (Eff. 8/1/89), citing Welfare & Institutions Code §§ 10553, 16504.)

Section 10553 does not appear to create a mandatory duty. The Court has struck references to section 16504 above. As to the remaining references, the Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(b) without leave to amend.

c. To investigate all relevant dangerous conditions of the foster home/facility that might adversely affect the child (CWS Manual, Letter No. SS-89-03, No. 30-162 (Eff. 8/1/89); Welfare & Institutions Code § 16504;

The Court has struck references to section 16504 above. As to the remaining references, the Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(c) without leave to amend.

d. To respond to violations of the foster home/facility’s operating license or requirements (CWS Manual, Letter No. SS-89-03, No. 30-338 (Eff. 8/1/89), citing Welfare & Institutions Code §§ 10553, 10554, Cal. CCR, Title 22, Section 87087(d).)

The Court has struck references to section 10553 above. Likewise, neither Welfare and Institutions Code section 10554 nor CCR, Title 22, Section 87087(d) appear to create a mandatory duty in regarding the facts alleged in this matter. As to the remaining references, the Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(d) without leave to amend.

e. To ensure that foster children residing in a foster home/facility are supervised at all times by authorized adult caregivers (CWS Manual, Letter No. SS-89-03, No. 30-342 (Eff. 8/1/89),

The Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(e) without leave to amend.

f. To continually assess the safety of a child's particular placement (CWS Manual, Letter No. SS-89-03, No. 30-142, 30-144, 30-198, 30-340, 30-342, 30-346 (Eff. 8/1/89)

The Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(f) without leave to amend.

g. To provide each child in foster care with quality services to protect their safety and health (CWS Manual, Letter No. SS-89-03, No. 30-009, 30-342, 30-346 (Eff. 8/1/89);

The Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(g) without leave to amend.

h. To initiate and implement all necessary plans of care (CWS Manual, Letter No. SS-89-03, No. 30-142, 30-144, 30-198, 30-232, 30-476 (Eff. 8/1/89);

The Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(h) without leave to amend.

i. To report and/or respond to all known incidents of sexual assault, abuse or aggression occurring in the foster home/facility (CWS Manual, Letter No. SS-89 03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3);

The Court has denied the motion to strike references to Penal Code section 11166 above and therefore the Court will not strike Paragraph 19(i) as to Penal Code section 11166.

However, the Court strikes the remaining references to the Penal Code and Letters in Paragraph 19(i) without leave to amend, as the Court has struck these above.

j. To ensure that foster children are not left in dangerous conditions, including being subjected to sexual, emotional, or physical abuse (CWS Manual, Letter No. SS 89-03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3);

The Court has denied the motion to strike references to Penal Code section 11166 above and therefore the Court will not strike Paragraph 19(j) as to Penal Code section 11166.

However, the Court strikes the remaining references to the Penal Code and Letters in Paragraph 19(j) without leave to amend, as the Court has struck these above.

k. To ensure that children are provided a non-threatening environment for candid assessments of their living situation with care managers or other supervisory personnel, to assure that incidents of abuse, misconduct, or violations of rights may be reported without fear of repercussion or not being believed (CWS Manual, Letter No. SS-89-03, No. 30-198, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7, 11166, 11166.3)

The Court has denied the motion to strike references to Penal Code section 11166 above and therefore the Court will not strike Paragraph 19(k) as to Penal Code section 11166.

However, the Court strikes the remaining references to the Penal Code and Letters in Paragraph 19(k) without leave to amend, as the Court has struck these above.

I. To provide a safe and stable home for foster children, including Plaintiff (CWS Manual, Letter No. SS-89-03, No. 30-342 (Eff. 8/1/89))

As to the remaining references, the Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court strikes paragraph 19(l) without leave to amend.

No. 12 – Paragraph 20 – “Welfare and Institutions Code §16504; CWS Manual, Letter SS-89-03, Division No. 30-100, 30-110, 30-132, 30-252, 30-492, 30-494 (Eff. 8/1/89).”

The Court has struck references to section 16504 above. As to the remaining references, the Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. For the same reasons as above, the Court grants the motion as to No. 12 without leave to amend.

No. 13 – Paragraph 21 - “CWS Manual, Letter No. SS-89-03, No. 30-196, 30-494 (Eff. 8/1/89); Welfare and Institutions Code § 16206 (added by Stats. 1987.)”

The Court has struck references to section 16206 above. As to the remaining references, the Court finds the Letters do not create mandatory duties applicable to the facts of this case and the remaining sections have been struck above. Further, the Court will strike the references to “duty to control” in this paragraph. For the same reasons as above, the Court grants the motion as to No. 13 without leave to amend.

No. 14 – Paragraph 23 – “Welf. & Inst. Code § 16504”

The Court has struck references to section 16504 above. For the same reasons as above, the Court grants the motion as to No. 14 without leave to amend.

No. 15 – Paragraph 37 – “Defendants knew, or had reason to know, or were otherwise on notice, of misconduct by Perpetrators that created a risk of childhood sexual assault and/or abuse against Plaintiff, and Defendants failed to take reasonable steps and/or implement safeguards to avoid such acts of childhood sexual assault and abuse.”

Defendant seeks to strike this paragraph on the basis it is a legal conclusion. The Court does not view the allegation as a legal conclusion, but rather a summary of other allegations set forth in the sixth amended complaint.

The Court denies the motion as to No. 15.

[The Court notes here that No. 15 as stated in the Notice of Motion and accompanying chart references Paragraph 50, while No. 15 in the memorandum itself references Paragraph 37. The Court will continue to follow the memorandum's numbering scheme in this ruling.]

No. 16 – Paragraph 50 – “the County failed to take corrective measures and reasonable oversight”

Here, Defendant seeks to strike this portion of the paragraph for failure to state a mandatory duty. However, this section of the operative amended complaint is entitled breach and therefore it does not appear Plaintiff has alleged a mandatory duty here.

Therefore, the Court denies the motion as to No. 16.

No. 17a - Paragraph 51 – “(ii) failing to adequately, properly and completely investigate whether Plaintiff was safe and free from maltreatment; (iii) failing to adequately, properly and completely investigate the acts and conduct of the Perpetrator and the sexual abuse of Plaintiff”

Here, Defendant seeks to strike the terms “adequately” and “completely” as the adequacy and completeness of an investigation is subject to discretionary immunity. The Court agrees, noting the discussion above regarding the allegation of a complete failure to respond sufficient to allege a breach of a mandatory duty, while the sufficiency of the response falls under discretionary immunity. (Jacqueline T., supra, 155 Cal.App.4th at 466.)

Therefore, the Court grants the motion as to No. 17a without leave to amend.

No. 17b – Paragraph 51 – “(vii) failing to adequately hire and train employees, agents and case workers”

For the same reasons as stated under No. 17a, the Court grants the motion as to No. 17b without leave to amend.

No. 18a – Paragraph 54 – Allegations re: failure to perform “proper background checks”

Here, Defendant argues that there is no allegation of a proper background check in connection with a mandatory duty or breach thereof, rendering this allegation irrelevant.

The Court agrees and grants the motion as to No. 18a without leave to amend.

No. 18b – Paragraph 54 – Allegations re: “meaningful caseworker visits”

Here, Defendant argues that there is no allegation of a meaningful caseworker visits in connection with a mandatory duty or breach thereof, rendering this allegation irrelevant and arguing further that discretionary immunity applies under K.C., supra, 109 Cal.App.5th 606.

The Court agrees and grants the motion as to No. 18b without leave to amend.

No. 19 – Paragraph 61 – “The California legislature declared its intent that nothing in the decision of the California Court of Appeal in County of Los Angeles v. Superior Court of Los Angeles: Real Party in Interest Terrell R. (2002) 102 Cal.App.4th 627, shall be held to change the standards of liability and immunity for injuries to children in protective custody that existed prior to that decision.”

Defendant notes this is an incomplete quotation from Welf. & Inst. Code section 16000.1(b)(1), which was not adopted until 2003 and is therefore irrelevant to the allegations of the complaint. The Court grants the motion as to No. 19 without leave to

amend.

No. 20 - Paragraph 67 and 68

Defendant seeks to strike these entire paragraphs, noting that the Court previously granted a motion to strike these as they previously failed to connect the allegation to a mandatory duty.

However, the Court has noted above the application of Penal Code section 11666 and 16501(f) to the allegations of this complaint, sections referenced in paragraphs 67 and 68. Therefore, the Court cannot strike the entire paragraphs as requested.

However, the Court has previously struck references to Penal Code sections 11166.3 and 11165.7, as well as the Letters referenced in those paragraphs.

As such, the Court grants the motion as to “CWS Manual, Letter No. SS-89-03, No. 30-132, 30-134 (Eff. 8/1/89); Penal Code §§ 11165.7” and “11166.3” in Paragraph 67 and “CWS Manual, Letter No. SS-89-03, No. 30-132, 30-134, 30-342 (Eff. 8/1/89)” in Paragraph 68 without leave to amend.

No. 21 - Paragraph 79

The Court has sustained the demurrer above without leave to amend as to the entire second cause of action for vicarious liability, including Paragraph 79. As such, the Court denies the motion as to No. 21 as moot.

No. 22 - Plaintiff's Second Cause of Action - Vicarious Liability

As the Court has sustained the demurrer above without leave to amend to this cause of action for vicarious liability, the Court finds the motion moot as to No. 22 and denies it on that basis.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.